

## 26PR00686 Matter of The Antheunisse Family Living Trust

County: sonoma

Division: Probate

Hearing date: 2027-01-08

Motion: Petition to (1) Remove Co-Trustee, (2) Suspend Trustee, (3) Surcharge, (4) Damages, (5) Confirm Trust Property, and (6) Sell Trust Property

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Petition to (1) Remove Co-Trustee, (2) Suspend Trustee, (3) Surcharge, (4) Damages, (5) Confirm Trust Property, and (6) Sell Trust Property

Tentative Ruling: The matter is CONTINUED to Friday, January 8, 2027 at 9:30 a.m. in Department 63 as explained below.

Based on the allegations in the Petition, Robert is in exclusive possession of the Property and therefore is entitled to service in the manner of a summons pursuant to Probate Code section 851(a)(2) and Code of Civil Procedure section 413.10 et seq. The proof of service dated June 2, 2026 only shows service to Robert via mail, which is insufficient. Furthermore, the 2012 recording of the grant deed to the Property shows that the Property is encumbered by a loan. No lender was given notice of the Petition. Probate Code section 851(a)(2) and Code of Civil Procedure section 413.10 et seq., require personal service of the Petition on the lender. These issues were noted in the examiner notes posted August 8, 2026 but have not been corrected. The Court refrains from ruling on the Petitioner's request to remove Robert as Co-Trustee, his temporary suspension, or sale of the Property until Robert receives proper notice of the Petition.

Alternatively, if Eric can produce proofs of service at or before the hearing showing personal service of Robert and the lender, the Court will address the merits and avoid a continuance for the following issues: removal/suspension of Robert as Co-Trustee, confirmation of trust property, and sale of trust property.

As to the damages/surcharge requested in the Petition, evidence will need to be presented to this Court before a decision can be rendered. Therefore, this matter is CONTINUED to Friday January 8, 2027 at 9:30 a.m. in Department 63. The dual purpose of the continuance is to allow the petitioner time to prepare to present written evidence to the Court and Robert regarding the amount of any damages/surcharge claimed. Unless the petitioner needs and requests more time, the petitioner should file and serve written evidence supporting the damages sought at least 10 days before the hearing. In the absence of any objection, the Court may decide the question based solely on the written evidence submitted. However, if there is an objection, or if the Court determines it requires live testimony, it may set an evidentiary hearing.